

(215)

EXHIBIT I
BY-LAWS OF THE
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

BY-LAWS
OF
BARWOOD CONDOMINIUM IMPROVEMENT
ASSOCIATION, INC.

1. IDENTITY. These are the By-Laws of the BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., herein called the Association, a corporation not for profit under the laws of the State of Florida, the Articles of Incorporation of which were filed in the office of the Secretary of State of Florida on the 23rd day of March, A.D., 1976. The Association has been organized to promote the health, recreation and social welfare of all Unit Owners of condominium parcels within the area described in Exhibit 1 attached to the Articles of Incorporation of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., hereinafter referred to as Exhibit 1.

1.1 Definitions. All terms used herein which are defined by the Declaration of Condominium or Declaration of Covenants and Restrictions for Improvement and Maintenance, or by Florida Statute 711 (1974), the Condominium Act, shall be used herein with the same meaning as defined in said Declaration or said Statute.

1.2 The fiscal year shall be the calendar year.

1.3 The office of the Association shall be 23099 Barwood Lane North, Boca Raton, Florida 33432, or such other place or places as the Board of Directors may from time to time determine.

1.4 The seal of the Association shall have inscribed thereon the name of the Association, the year of its organization and the words "corporation not for profit". Said seal may be used by causing it or a facsimile thereof to be impressed, affixed, reproduced or otherwise.

2. MEMBERSHIP AND MEMBERS' MEETINGS.

2.1 Qualification. The members of the Association shall consist of all record Unit Owners of a residential condominium parcel within the area described in Exhibit 1, and such membership shall become effective immediately upon a party becoming a record title holder of a condominium parcel.

2.2 Special Members' Meetings shall be held at the office of the corporation whenever called by the President or by a majority of the Board of Directors. The business conducted at such special meetings shall be limited to that stated in the notice of meeting. The special meeting of the members held annually to

elect the Board of Directors shall be held on the third Monday of the month of January.

2.3 Notice of all members' meetings stating the time and place and the objects for which the meeting is called shall be given by the President or Vice President or Secretary, unless waived in writing. Such notice shall be written or printed and shall state the time and place and object for which the meeting is called. Such notice shall be given to each member not less than ten (10) days, nor more than sixty (60) days prior to the date set for such meeting, which notice shall be mailed or presented personally to each member within said time. If presented personally, receipt for such notice shall be signed by the member, indicating the date on which such notice was received by him. If mailed, such notice shall be deemed to be properly given when deposited in the United States mails, addressed to the member at his post office address as it appears on the records of the Association, the postage thereon prepaid. Proof of such mailing shall be given by the affidavit of the person giving the notice. Any member may, by written notice signed by such member, waive such notice, and such waiver, when filed in the records of the Association, whether before or after the holding of the meeting, shall be deemed equivalent to the giving of such notice to such member.

2.4 A quorum. A quorum at members' meeting shall consist of the presence in person or by proxy of a majority of the votes of the entire membership. The acts approved by a majority of the votes present at a meeting at which a quorum is present shall constitute the acts of the members, except where approval by a greater number of members is required by the Articles of Incorporation or these By-Laws.

2.5 Voting.

1. In any meeting of members, the Unit Owners of a condominium parcel shall be entitled to cast one vote for each condominium parcel so owned.

2. If a condominium parcel is owned by one person, his right to vote shall be established by the roster of unit owners kept by the Secretary of the Association. If a condominium parcel is owned by more than one person, or is under lease, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by all of the record owners of the condominium parcel according to the roster of unit owners and filed with the Secretary of the Association. If a condominium parcel is owned by a corporation, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by the president or vice president and attested by the secretary or assistant secretary of the corporation and filed with the secretary of the Association. Such certificates

shall be valid until revoked or until superseded by a subsequent certificate or until a change in ownership of the condominium parcel concerned. A certificate designating the person entitled to cast the vote of a condominium parcel may be revoked by any owner thereof. If such certificate is not on file, the vote of such owners shall not be considered in determining the requirement for a quorum nor for any other purpose.

2.6 Proxies. Votes may be cast in person or by proxy. A proxy may be made only to an owner of a unit entitled to vote within the area described in Exhibit 1. A proxy may be made by any person entitled to vote and shall be valid only for the particular meeting designated therein and must be filed with the Secretary before the appointed time of the meeting, or any adjournment thereof.

2.7 Adjourned meetings. If any meeting of members cannot be organized because a quorum has not attended, the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present.

2.8 At meetings of the membership, the President shall preside, or in his absence, the Vice President shall preside, or in the absence of both, the membership shall select a chairman.

2.9 The order of business at members' meetings shall be:

1. Determination of chairman of the meeting.
2. Calling of the roll and certifying of proxies.
3. Proof of notice of meeting or waiver of notice.
4. Reading and disposal of any unapproved minutes.
5. Reports of officers.
6. Reports of committees.
7. Election of inspectors of elections.,
8. Election of directors.
9. Unfinished business.
10. New business.
11. Adjournment.

3. DIRECTORS.

3.1 Membership. The affairs of the Association shall be managed by a board of a number of directors to be determined as follows:

1. Three (3) directors initially which number shall remain the same until the Developer has sold and conveyed all condominium parcels within the area described in Exhibit 1, or sooner upon option and notification by the Developer.

2. Not less than three (3) nor more than nine (9) to be elected at the first election of directors.

3. A nominating committee of five (5) members shall be appointed by the Board of Directors not less than thirty (30) days prior to the annual members' meeting. The committee shall nominate one (1) person for each director then serving or to serve as may be adjusted by a vote of the membership as hereinabove provided for. Other nominations may be made from the floor.

4. The election shall be by ballot (unless dispensed by unanimous consent) and by a plurality of the votes cast, each person voting being entitled to cast his votes for each of as many nominees as there are vacancies to be filled. There shall be no cumulative voting.

5. Except as to vacancies provided by removal of directors by members, vacancies in the Board of Directors occurring between special meetings of members shall be filled by the remaining directors.

6. Any director may be removed by concurrence of two-thirds of the votes of the entire membership at a special meeting of the members called for that purpose. The vacancy in the Board of Directors so created shall be filled by the members of the Association at the same meeting.

3.2 The term of each director's service shall extend until the next annual meeting of the members and thereafter until his successor is duly elected and qualified or until he is removed in the manner elsewhere provided.

3.3 Regular meetings of the Board of Directors may be held at such time and place as shall be determined from time to time by a majority of the directors. Notice of regular meetings shall be given to each director, personally or by mail, telephone or telegraph at least three (3) days prior to the day named for each meeting.

3.4 Special meetings of the directors may be called by the President and must be called by the Secretary at written request of one-half of the directors. Not less than three (3) days' notice of the meeting shall be given personally or by mail, telephone, which notice shall state the time, place and purpose of the meeting.

3.5 Waiver of notice. Any director may waive notice of a meeting before or after the meeting and such waiver shall be deemed equivalent to the giving of notice.

3.6 A quorum at directors' meetings shall consist of a majority of the entire Board of Directors. The acts approved by a majority of those present at a meeting at which a quorum is present shall constitute the acts of the Board of Directors,

except where approval by written consent or by a greater number of directors is required by the Articles of Incorporation or these By-Laws.

3.7 Adjourned meetings. If at any meeting of the Board of Directors there be less than a quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present. At any adjourned meeting any business which might have been transacted at the meeting as originally called may be transacted without further notice.

3.8 Joinder in meeting by approval of minutes. The joinder of a director in the action of a meeting by signing and concurring in the minutes thereof shall constitute the presence of such a director for the purpose of determining a quorum.

3.9 The presiding officer of director's meetings shall be the chairman of the board if such an officer has been elected; and, if none, the President shall preside. In the absence of the presiding officer, the directors present shall designate one of their number to preside.

3.10 The order of business at directors' meetings shall be:

1. Calling of roll.
2. Proof of due notice of meeting.
3. Reading and disposal of any unapproved minutes.
4. Reports of officers and committees.
5. Election of officers.
6. Unfinished business.
7. New business.
8. Adjournment.

4. POWERS AND DUTIES OF THE BOARD OF DIRECTORS.

4.1 All of the powers and duties of the Association existing under any Declaration of Covenants and Restrictions, Articles of Incorporation and these By-Laws shall be exercised exclusively by the Board of Directors, its agents, contractors or employees, subject only to approval by members of the Association when such is specifically required. Such powers and duties of the directors shall include, but shall not be limited to the following, subject, however, to the provisions of the Declaration of Covenants and Restrictions for Improvements and Maintenance, the Articles of Incorporation and these By-Laws.

1. To purchase insurance for the protection of the Association and its members.

2. To acquire and enter into agreement whereby it acquires leaseholds, memberships and any other possessory or use interests in lands, or facilities whether or not contiguous

to the lands described in Exhibit 2, attached to the Articles of Incorporation of Barwood Condominium Improvement Association, Inc., intended to provide for the enjoyment, recreation or other use and benefit of the unit owners, and to declare expenses in connection therewith to be subject to assessment to the members.

3. To pay all costs of power, gas, water, sewer and other utility services rendered to the unit owners and not billed to the owners of the separate condominium parcels.

4. To enforce by legal means, the provisions of the Articles of Incorporation and By-Laws of the Association, Declaration of Covenants and Restrictions for Improvement and Maintenance and the Regulations hereinafter promulgated governing use of the Association's properties.

5. To appoint and remove at the pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation, and require of them such security or fidelity bond as it may deem expedient. Nothing contained in these By-Laws shall be construed to prohibit the employment of any member, officer or Director of the Association in any capacity whatsoever.

6. To establish, levy and assess, and collect the assessments necessary to operate the Association and carry on its activities, and to create such reserves for extraordinary expenditures as may be deemed appropriate by the Board of Directors.

4.2 The undertakings, leases and contracts authorized by the initial board shall be binding upon the Association in the same manner and with the same effect as though such undertakings, leases and contracts had been authorized by the first Board of Directors, duly elected by the membership after the members have relinquished control of the Association, notwithstanding the fact that members of the initial Board of Directors may be directors or officers of, or otherwise associated with the BARWOOD DEVELOPMENT CORPORATION, or other entities doing business with the Association.

5. EXECUTIVE OFFICERS.

5.1 The executive officers of the corporation shall be a President, who shall be a director; a Vice President, who shall be a director; a Treasurer; a Secretary; and, an Assistant Secretary, all of whom shall be elected annually by the Board of Directors and who may be peremptorily removed by vote of the directors at any meeting by concurrence of a majority of all of the directors. Any person may hold two or more offices except that the President shall not also be the Secretary or an Assistant Secretary. The Board of Directors shall from time to time elect such other officers and designate their powers and duties as the board shall find to be required to manage the affairs of the Association.

5.2 The President shall be the chief executive officer of the Association. He shall have all of the powers and duties

which are usually vested in the office of president of an association, including but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion deem appropriate, to assist in the conduct of the affairs of the Association.

5.3 The Vice President shall in the absence or disability of the President, exercise the powers and perform the duties of the President. He shall also generally assist the President and exercise such other powers and perform such other duties as shall be prescribed by the directors.

5.4 The Secretary shall keep the minutes of all proceedings of the directors and the members. He shall attend to the giving and serving of all notices to the members and directors and other notices required by law. He shall have custody of the seal of the Association and affix the same to instruments requiring a seal when duly signed. He shall keep the records of the Association, except those of the Treasurer, and shall perform all other duties incident to the office of Secretary of an association and as may be required by the directors of the President. The Assistant Secretary shall perform the duties of the Secretary when the Secretary is absent.

5.5 The Treasurer shall have custody of all property of the Association, including funds, securities and evidences of indebtedness. He shall keep books of account for the Association in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the Board of Directors for examination at reasonable times. He shall submit a Treasurer's report to the Board of Directors at reasonable intervals and shall perform all other duties incident to the office of treasurer.

5.6 The compensation of all officers and employees of the Association shall be fixed by the directors.

6. FISCAL MANAGEMENT. The provisions for fiscal management of the Association set forth in the Articles of Incorporation shall be supplemented by the following provisions:

6.1 Accounts. The receipts and expenditures of the Association shall be credited and charged to accounts which shall include but not be limited to the following classifications as shall be appropriate, all of which expenditures shall be common expenses:

1. Current expenses, which shall include all receipts and expenditures to be made within the year for which the budget is made, including a reasonable allowance for contingencies and working funds, except expenditures chargeable to reserves or to betterments. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year.

2. Reserve for deferred maintenance, which shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for replacement, which shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds which may be used for capital expenditures for additional improvements or additional personal property.

5. The Board of Directors shall have the authority, during a budget year, to transfer funds which, in its discretion, it deems unnecessary to hold for the purposes of a particular account, to and for the use of another purpose in another account.

6.2 Budget. The Board of Directors shall adopt a budget for each calendar year which shall include the estimated fund required to defray the common expense and to provide and maintain funds for account and reserves including but not limited to the following, according to good accounting practices:

1. Current expense. Current expense shall include all funds and expenditures to be made within the year for which the funds are budgeted and may include a reasonable allowance for contingencies and working funds. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year, or to fund reserves.

2. Reserve for Deferred Maintenance. Reserve for deferred maintenance shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for Replacement. Reserve for replacement shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds to be used for capital expenditures for additional improvements or additional personal property which will be part of the common elements, the amount for which shall not exceed Five Thousand (\$5,000.00) Dollars; provided, however, that in the expenditure of this fund no sum in excess of Five Thousand (\$5,000.00) Dollars shall be expended for a single item or purpose unless such betterment has been approved by the members of the Association.

5. Copies of the budget and proposed assessments shall be available to each member on or before December 15th, preceding the year for which the budget is made and shall be filed in the office of the Association.

6.3 Assessments for Common Expenses. Assessments against the condominium parcel owners for their share of the common expenses shall be made for the calendar year annually in advance on or before December 20th, preceding the year for which the assessments are made. Such assessments shall be due and paid in equal monthly installments beginning on the first day of January of the year for which the assessment is made and the first day of each month thereafter. If an annual budget is not made as required, the monthly assessment shall be presumed to have been made in the amount of the last prior assessment and monthly installments thereon shall be due upon each installment payment date until changed by an amended assessment. ~~In the event the annual assessment proves to be insufficient, the budget and assessments therefore may be amended at any time by the Board of Directors.~~

6.4 The depository of the Association shall be such bank or banks as shall be designated from time to time by the directors and in which the monies of the Association shall be deposited. Withdrawal of monies from such accounts shall be only by checks signed by such persons as are authorized by the directors.

6.5 An audit of the accounts of the Association shall be made annually by a certified public accountant, and a copy of the audit report shall be furnished to each member not later than April 1st of the year following the year in which the audit was made.

6.6 Fidelity bonds shall be required by the Board of Directors from all persons handling or responsible for Association funds. The amount of such bonds and the sureties shall be determined by the directors. The premiums on such bonds shall be paid by the Association as a common expense.

6.7 The termination of membership in the Association shall not relieve or release any such former owner or a member from a liability or obligation incurred under or in any way connected with the Association during the period of membership, or impair any rights or remedies which the Association may have against such former member arising out of or in any way connected with such membership and the covenants and obligations incident thereto.

7. RULES AND REGULATIONS.

7.1 The Board of Directors may, from time to time, adopt or amend previously adopted administrative rules and regulations governing the details of the operation, use, maintenance, management and control of any facilities or services made available to the condominium parcel owners. The Board of Directors shall, from time to time, post in a conspicuous place on the condominium properties, a copy of the rules and regulations adopted from time to time by the Board of Directors.

8. REGISTERS.

8.1 The Secretary of the Association shall maintain a register in the corporation office showing the names and addresses of members. It shall be the obligation of the individual members to advise the Secretary of the Association of any change of address and ownership as otherwise provided. The Association, for purposes of notification, shall have the right to rely upon the last given address of each of the members.

9. AMENDMENTS.

9.1 Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

9.2 A resolution adopting a proposed amendment may be proposed by with the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either:

1. Not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association; or

2. By not less than eighty (80%) percent of the votes of the entire membership of the Association.

9.4 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted as an amendment of the By-Laws, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall effective when such certificate and a copy of the amendment are recorded in the Public Records of Palm Beach County, Florida.

10. PARLIAMENTARY RULES. Roberts' Rules of Order (latest edition) shall govern the conduct of the Association meeting when not in conflict with the Declaration of Covenants and Restrictions for Improvement and Maintenance, the Declaration of Condominium, Articles of Incorporation or these By-Laws.

11. MISCELLANEOUS.

11.1 Whenever the masculine singular form of the person is used in these By-Laws, it shall be construed to mean the masculine, feminine or neuter, singular or plural, wherever the context so requires.

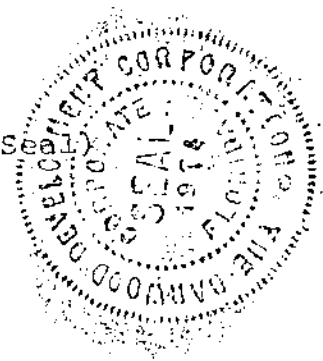
11.2 If any irreconcilable conflicts should exist, or hereafter arise, with respect to the interpretation of these By-Laws and the Articles of Incorporation or the Declaration of Covenants and Restrictions for Improvement and Maintenance, the provisions of the Declaration of Covenants and Restrictions for Improvement and Maintenance shall prevail.

11.3 Corporation and Association are used synonymously.

The foregoing was adopted as the By-Laws of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., a corporation not for profit under the laws of the State of Florida, at the first meeting of the Board of Directors, on the 27th day of March, 1976.

Barbara M. Spatling
Secretary

(Corporate Seal)



Approved:

Barbara M. Spatling
President

BARWOOD IMPROVEMENT ASSOC., INC.
23243 Barwood Lane N.
Boca Raton, Fl. 33428

These rules are designed to make living in our condominium apartment complex pleasant and comfortable. In living together all of us not only have certain rights but also certain obligations to other apartment owners. We must remember that the restrictions we impose upon ourselves are for our mutual benefit and comfort.

The following rules do not supersede the corporate by-laws or any other legal obligations. Objectionable behavior is not acceptable even if it is not specifically covered in the rules. Violations by owner's employees, guests, lessees or children are the responsibility of those owners.

The Rules will be enforced as follows: 1. Violations will be called to the attention of the Board of Directors. 2. Disagreements concerning violations will be presented in writing above a signature to the Board of Directors to take action.

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Revised: 11-16-79
04-14-1980
06-1980
04-1981
05-11-82
12-15-84

RULES & REGULATIONS

AS ADOPTED DECEMBER 15, 1984

BY THE

BOARD OF DIRECTORS

OF THE

BARWOOD CONDOMINIUM IMPROVEMENT ASS'N., INC.

FACILITIES:

The recreation facilities of the Barwood Condominium Improvement Ass'n., Inc., are for the exclusive use of the Association Members, lessees, resident house guests and guests accompanied by a member. No guest or relative of any member or lessee other than a house guest or relative actually in residence shall be permitted to use the recreational facilities unless accompanied by a resident member or the family of such owner or lessee. Any damage to the buildings, recreational facilities or other common areas or equipment caused by any resident or his guests shall be repaired at the expense of the owner.

Please attach this information to your copy of the Rules and Regulations previously revised in May, 1982.

POOL RULES

BARWOOD CONDOMINIUM IMPROVEMENT ASSOC.

1. SWIMMING HOURS: 7:30 A.M. to 6:00 P. M. (WINTER SEASON)
7:30 A.M. to 10:00 P.M. (SUMMER SEASON)
 2. NO LIFE GUARD - SWIM AT YOUR OWN RISK
 3. NO DIVING - NO RUNNING
 4. NO ANIMALS IN POOL AREA
 5. BEFORE ENTERING POOL, SHOWER & REMOVE SUNTAN OIL
 6. NO FOOD AND DRINKS IN POOL AREA
 7. PROPER BATHING SUITS MUST BE WORN
 8. HAIR LONGER THAN EAR LOBES MUST BE COVERED BY CAP
 9. RESERVATION OF FURNITURE NOT PERMITTED
 10. FURNITURE IS TO BE COVERED WHEN USING SUNTAN OIL
 11. NO LOOSE ITEMS PERMITTED IN POOL
 12. CHILDREN UNDER 15 YEARS MUST BE ACCOMPANIED BY AN ADULT
 - * 13. BATHING LOAD 15 PERSONS AT ONE TIME
CHILDREN UNDER 3 YEARS OF AGE, ABSOLUTELY NOT PERMITTED
IN POOL
 14. NO SOAP OR SHAMPOO LOTIONS PERMITTED IN THE SHOWER..NO
SHAMPOOING OF HAIR
 15. STAIRS TO POOL MUST BE USED FOR ENTERING AND LEAVING ONLY.
NO SITTING ON STAIRS
- TELEPHONE IN CLUB HOUSE TO BE USED ONLY IN EMERGENCY; 487-8487
- * BY ORDER OF THE BOARD OF HEALTH -PALM BEACH COUNTY

Please acquaint yourselves with the new pool rules and see that your guests are familiar with them as well.

The signs posted on pool area gates read as follows:

NO TRESPASSING
PROPERTY OF BOCA BARWOOD CONDO. ASS'N. INC.
ALL PERSONS ENTERING POOL AREA MUST HAVE A BOCA BARWOOD I.D. BADGE,
SAME TO BE PRODUCED ON REQUEST OF ANY BOCA BARWOOD OWNER.

Revised: December 15, 1984

No reservation to reserve the recreation room shall be made without the approval of the Recreation Building Committee.

Proper attire.

No bathing suits allowed.

No eating in the recreation room unless it is an authorized function, or by the Board of Directors.

CARD ROOM

Card games are to be confined to the card room only.

There are to be no scheduled card games on Saturday nights so as not to interfere with large parties or organized functions.

USE OF THE CLUB HOUSE FACILITIES

1. BY COMMITTEES

Any day of the week may be reserved with first consideration given to the following:

- (a) Entertainment Committee - who shall establish an ongoing calendar of 90 days.
- (b) Any other authorized committees shall co-ordinate with the established above.

2. BY UNIT OWNERS

A unit owner who wishes to use the recreation room for a private party may do so if the following regulations are met:

- (a) Authorization must be obtained from the Recreation Building Calendar Director for use of the recreation room and kitchen facilities for the date.
- (b) A deposit of \$35.00 is required for private parties. The \$35.00 deposit to be returned if facilities are cleaned and no damages incurred. Damages not restricted to \$35.00 deposit
- (c) Social affairs not to exceed legal capacity of 104 persons.
- (d) A unit owner may not give a private party sooner than a four-month interval.
- (e) The recreation room and kitchen shall be restored to the condition in which they were found by 12:00 noon the following day.
- (f) No appropriation of supplies stored in locked rooms, such as napkins, plastic forks, spoons, etc.
- (g) Garbage to be removed from premises immediately after the party.

CONDO BUILDING

A Condo building of Boca Barwood Complex may reserve the recreation hall through the action of their Board. All regulations under the title "Unit Owners" shall apply except Item 2 (b)

Revised: 12/15/84

PROPERTY ACCOUNTABILITY

Nothing is to be removed from the Recreation Building or pool area, maintenance stockrooms or any other common areas. Card tables, chairs, any and all furniture which is a permanent part of the recreational area may not be removed for any reason whatsoever. This furniture will not be loaned to any apartment owner.

COMMON AREA

No one is to turn off pumps, switches, clocks, etc. Any unauthorized person (s) who does so will be held responsible for any subsequent damage or expense in correcting. No one is to trim shrubs or cut trees, except proper authorized personnel.

PARKING

The designated area for vehicles other than passenger cars and station wagons shall be the area adjacent to the East side of Swimming Pool.

- (a) Golf Carts, Motor Cycles, Vans or any other self propelled vehicle not longer than 18 ft., shall park in this area.
Vehicles with outside visable equipment, such as ladders, pipe, etc., must receive permission by the Board of Directors.
- (b) Larger vehicles including boats, trailers and Recreational Vehicles may use this area for a period of Forty eight (48) Hours, provided permission is granted By a member of the Board of Directors. Board of Director Member shall notify President, if such permission is granted.
- (c) No parked vehicle may be used for living, while parked in this area.
- (d) No repairs of any kind, except in an emergency, shall be made while parked in the Common Area.

PETS

All dog owners must comply with the County Ordinance that makes it mandatory for dogs to be leashed. It is your responsibility to carry materials to clean up their "messes". The dog walk designated area is the only area on the grounds on which your dog is permitted to relieve itself.

SAUNA

For Adults Only.

Anyone using the Sauna must do so at own risk and with knowledge of another adult in pool area.

Follow instructions carefully.

Wear proper bathing attire.

SHUFFLEBOARD COURTS

Walking not permitted on the shuffleboard courts.

No children under 15 years of age may use the courts without adult supervision.

For residents and guests only.

Return equipment to designated area upon completion of play.

TENNIS COURTS

For use of residents and guests only. Any minor under 15 years of age must be supervised by an adult.

Smooth-soled tennis shoes only.

Only players are permitted on the courts.

Beverages, food, smoking, furniture, chairs, etc., are not permitted inside the tennis courts.

Reservations will be designated by the Tennis Committee when necessary.

Tennis Rule: Person must be accompanied by a resident member or the family of such owner.

Any damage by guests shall be repaired at the expense of the Unit Owner.

718.123 Right of owners to peaceably assemble

(1) All common elements, common areas, and recreational facilities serving any condominium shall be reserved exclusively for the use and benefit of the unit owners and their invited guests. Each association shall adopt reasonable rules and regulations pertaining to the use of such common elements, common areas, and recreational facilities. The use of such common elements, common areas, and recreational facilities shall be subject only to those rules and regulations as (are) adopted by the association; however, such rules and regulations shall not unreasonably restrict any unit owner's right to peaceably assemble or right to invite public officers or candidates for public office to appear and speak on common elements, common areas, and recreational facilities.

(2) Any owner prevented from exercising rights guaranteed by subsection (1) may bring an action in the appropriate court of the county in which the alleged infringement occurred, and, upon favorable adjudication, the court shall enjoin the enforcement of any provision contained in any condominium document or rule which operates to deprive the owner of such rights.

Laws 1977, c. 77-222, § 1, eff. Oct. 1, 1977.

SPECIAL MEETING
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION INC.

Instrument prepared by:

Ken W. Middle
3206 Barwood Lane N 309
Barwood Lane 3206 3206/33

A special meeting of the Barwood Condominium Improvement Association Inc. was held on Tuesday, April 8, 1980 at 23243 Barwood Lane North, Boca Raton, Florida 33433 at 0730 P.M.

All officers and directors were present, including:

Edgar Nichols--President and
Irene Sharkey--Secretary

The purpose of this meeting was to vote on amendments to the By-Laws of the Barwood Condominium Improvement Association Inc. by the membership.

The amendments to the By-Laws were passed by more than the 75% of the voting members of the association with only one (1) negative vote and with one (1) abstention. The changes and amendments are therefore, to become effective immediately.

The indicated attached amendments are to be included in the By-Laws as indicated. All amendments refer to Exhibit I.

1. IDENTITY -Date revised to be April 8, 1980.

1.3 Definition--- The office of the Association shall be 23243 Barwood Lane North, Boca Raton, Florida 33433.

2. MEMBERSHIP AND MEMBER'S MEETINGS

2.2 Special Member's Meetings Delete all after---special meetings shall be limited to that stated in the notice of meeting."

2.9 Order of Business----Change item 2 to read "Calling of the roll for verification of proper quorum for voting purposes only, and certification of proxies."
Delete items 7 and 8 and renumber all items following number 2.

3. DIRECTORS

3.1.2 Delete original words and replace with the following:
The Board shall consist of nine (9) members.

3.1.3 Delete old words. Replace with following:

The Board of Directors of the Barwood Condominium Improvement Association Inc. shall consist of the elected presidents of each of the six Condominium Building Associations. The remaining three (3) Directors are to be chosen by their respective Building Association. Building 1, 3, and 5 shall choose Directors for odd numbered years, ie 1981, 1983 etc. Buildings 2, 4, and 6 shall choose Directors for even numbered years, 1980, 1982 etc.

(continued)

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These three (3) chosen Directors may be selected from any member of their respective building associations for the appropriate year.

In the absence of any Director for any meeting of the Barwood Condominium Improvement Association Inc., the absent Director shall designate a member of his respective building association to act in his stead with full voting powers.

In the event that all building association presidents are replaced at their regular annual elections, the President of the Barwood Condominium Improvement Assoc. for the preceding year shall act as President Emeritus for the new Board in an advisory capacity to assure continuity of ongoing business. The President Emeritus shall not, in this case, exercise any Board voting rights.

3.1.4 Delete entire paragraph

3.1.5 Change to read as follows: Except as to vacancies provided by removal of Directors by members, vacancies on the Board of Directors occurring between special meetings of the members shall be filled in accordance with provisions of part 3.1.3 herein.

3.1.6 Delete entire paragraph.

3.3 Rewritten to read as follows: Regular meetings of the Board of Directors shall be held on the second Tuesday of each month at 07:30 P.M., except they shall be suspended during the months of July, August and September.

4. POWERS AND DUTIES of the BOARD of DIRECTORS

4.2 Delete .Rewritten as follows:

The undertakings, leases and contracts authorized by the initial board shall be binding upon the Association in the same manner and with the same effect as though such undertakings, leases and contracts had been authorized by the present board.

6. FISCAL MANAGEMENT

6.5 Rewritten to read as follows:

An audit of the accounts of the association shall be made annually by a Board appointed Finance Committee of three (3), one member of which must be an Accountant. An approved, signed copy of the audit report shall be furnished to each member of the Association not later than April first of the year following the year for which the audit was made.

(Continued)

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9. AMENDMENTS

9.2.1 Rewritten to read as follows:

Not less than 2/3 of the entire membership of the Board of Directors and by not less than 2/3 of the entire membership in person or by proxy or----

9.2.2 Rewritten to read as follows:

By not less than 70% of the votes of the entire membership of the Association.

There being no other business to come before the meeting, it was adjourned.

James V. Shortley
Secretary

STATE OF Florida

COUNTY OF Palm Beach

I HEREBY CERTIFY that on this day personally appeared before me, an officer duly authorized to administer oaths and take acknowledgments James V. Shortley to me well known

to be the person described in and she executed the foregoing instrument and acknowledged before me that she executed the same for the purposes therein expressed.

IN WITNESS THEREOF, I have hereunto set my hand and affixed my official seal at said County and State this 15 day of April

A.D. 19 80

Virginia J. Smith
NOTARY PUBLIC

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES AUG. 22, 1981
BONDED THRU GENERAL INS. UNDERWRITERS

B3283 P1180

EXHIBIT I
BY-LAWS OF THE
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC. . .

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM VI, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

B3283 P1181

BY-LAWS
OF
BARWOOD CONDOMINIUM IMPROVEMENT
ASSOCIATION, INC.

1. IDENTITY. These are the By-Laws of the BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., herein called the Association, a corporation not for profit under the laws of the State of Florida, the Articles of Incorporation of which were filed in the office of the Secretary of State of Florida on the 23rd day of March, A.D., 1976. The Association has been organized to promote the health, recreation and social welfare of all Unit Owners of condominium parcels within the area described in Exhibit 1 attached to the Articles of Incorporation of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., hereinafter referred to as Exhibit 1. *Revised 2/76*

1.1 Definitions. All terms used herein which are defined by the Declaration of Condominium or Declaration of Covenants and Restrictions for Improvement and Maintenance, or by Florida Statute 711 (1974), the Condominium Act; shall be used herein with the same meaning as defined in said Declaration or said Statute.

1.2 The fiscal year shall be the calendar year.

1.3 The office of the Association shall be 23099 Barwood Lane North, Boca Raton, Florida 33432, or such other place or places as the Board of Directors may from time to time determine.

1.4 The seal of the Association shall have inscribed thereon the name of the Association, the year of its organization and the words "corporation not for profit". Said seal may be used by causing it or a facsimile thereof to be impressed, affixed, reproduced or otherwise.

2. MEMBERSHIP AND MEMBERS' MEETINGS.

2.1 Qualification. The members of the Association shall consist of all record Unit Owners of a residential condominium parcel within the area described in Exhibit 1, and such membership shall become effective immediately upon a party becoming a record title holder of a condominium parcel.

2.2 Special Members' Meetings shall be held at the office of the corporation whenever called by the President or by a majority of the Board of Directors. The business conducted at such special meetings shall be limited to that stated in the notice of meeting. The special meeting of the members held annually to

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elect the Board of Directors shall be held on the third Monday of the month of January.

2.3 Notice of all members' meetings stating the time and place and the objects for which the meeting is called shall be given by the President or Vice President or Secretary, unless waived in writing. Such notice shall be written or printed and shall state the time and place and object for which the meeting is called. Such notice shall be given to each member not less than ten (10) days, nor more than sixty (60) days prior to the date set for such meeting, which notice shall be mailed or presented personally to each member within said time. If presented personally, receipt for such notice shall be signed by the member, indicating the date on which such notice was received by him. If mailed, such notice shall be deemed to be properly given when deposited in the United States mails, addressed to the member at his post office address as it appears on the records of the Association, the postage thereon prepaid. Proof of such mailing shall be given by the affidavit of the person giving the notice. Any member may, by written notice signed by such member, waive such notice, and such waiver, when filed in the records of the Association, whether before or after the holding of the meeting, shall be deemed equivalent to the giving of such notice to such member.

2.4 A quorum. A quorum at members' meeting shall consist of the presence in person or by proxy of a majority of the votes of the entire membership. The acts approved by a majority of the votes present at a meeting at which a quorum is present shall constitute the acts of the members, except where approval by a greater number of members is required by the Articles of Incorporation or these By-Laws.

2.5 Voting.

2-5-1. In any meeting of members, the Unit Owners of a condominium parcel shall be entitled to cast one vote for each condominium parcel so owned.

2-5-2. If a condominium parcel is owned by one person, his right to vote shall be established by the roster of unit owners kept by the Secretary of the Association. If a condominium parcel is owned by more than one person, or is under lease, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by all of the record owners of the condominium parcel according to the roster of unit owners and filed with the Secretary of the Association. If a condominium parcel is owned by a corporation, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by the president or vice president and attested by the secretary or assistant secretary of the corporation and filed with the secretary of the Association. Such certificates

shall be valid until revoked or until superseded by a subsequent certificate or until a change in ownership of the condominium parcel concerned. A certificate designating the person entitled to cast the vote of a condominium parcel may be revoked by any owner thereof. If such certificate is not on file, the vote of such owners shall not be considered in determining the requirement for a quorum nor for any other purpose.

2.6 Proxies. Votes may be cast in person or by proxy. A proxy may be made only to an owner of a unit entitled to vote within the area described in Exhibit 1. A proxy may be made by any person entitled to vote and shall be valid only for the particular meeting designated therein and must be filed with the Secretary before the appointed time of the meeting, or any adjournment thereof.

2.7 Adjourned meetings. If any meeting of members cannot be organized because a quorum has not attended, the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present.

2.8 At meetings of the membership, the President shall preside, or in his absence, the Vice President shall preside, or in the absence of both, the membership shall select a chairman.

2.9 The order of business at members' meetings shall be:

- 1. Determination of chairman of the meeting.
- 2. Calling of the roll and certifying of proxies.
- 3. Proof of notice of meeting or waiver of notice.
- 4. Reading and disposal of any unapproved minutes.
- 5. Reports of officers.
- 6. Reports of committees.
- 7. Election of inspectors of elections.
- 8. Election of directors.
- 9. Unfinished business.
- 10. New business.
- 11. Adjournment.

3. DIRECTORS.

3.1 Membership. The affairs of the Association shall be managed by a board of a number of directors to be determined as follows:

3-1. Three (3) directors initially which number shall remain the same until the Developer has sold and conveyed all condominium parcels within the area described in Exhibit 1, or sooner upon option and notification by the Developer.

3-2. Not less than three (3) nor more than nine (9) to be elected at the first election of directors.

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3-1-3. A nominating committee of five (5) members shall be appointed by the Board of Directors not less than thirty (30) days prior to the annual members' meeting. The committee shall nominate one (1) person for each director then serving or to serve as may be adjusted by a vote of the membership as hereinabove provided for. Other nominations may be made from the floor.

3-1-4. The election shall be by ballot (unless dispensed by unanimous consent) and by a plurality of the votes cast, each person voting being entitled to cast his votes for each of as many nominees as there are vacancies to be filled. There shall be no cumulative voting.

3-1-5. Except as to vacancies provided by removal of directors by members, vacancies in the Board of Directors occurring between special meetings of members shall be filled by the remaining directors.

3-1-6. Any director may be removed by concurrence of two-thirds of the votes of the entire membership at a special meeting of the members called for that purpose. The vacancy in the Board of Directors so created shall be filled by the members of the Association at the same meeting.

3.2 The term of each director's service shall extend until the next annual meeting of the members and thereafter until his successor is duly elected and qualified or until he is removed in the manner elsewhere provided.

3.3 Regular meetings of the Board of Directors may be held at such time and place as shall be determined from time to time by a majority of the directors. Notice of regular meetings shall be given to each director, personally or by mail, telephone or telegraph at least three (3) days prior to the day named for each meeting.

3.4 Special meetings of the directors may be called by the President and must be called by the Secretary at written request of one-half of the directors. Not less than three (3) days' notice of the meeting shall be given personally or by mail, telephone, which notice shall state the time, place and purpose of the meeting.

3.5 Waiver of notice. Any director may waive notice of a meeting before or after the meeting and such waiver shall be deemed equivalent to the giving of notice.

3.6 A quorum at directors' meetings shall consist of a majority of the entire Board of Directors. The acts approved by a majority of those present at a meeting at which a quorum is present shall constitute the acts of the Board of Directors,

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except where approval by written consent or by a greater number of directors is required by the Articles of Incorporation or these By-Laws.

3.7 Adjourned meetings. If at any meeting of the Board of Directors there be less than a quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present. At any adjourned meeting any business which might have been transacted at the meeting as originally called may be transacted without further notice.

3.8 Joinder in meeting by approval of minutes. The joinder of a director in the action of a meeting by signing and concurring in the minutes thereof shall constitute the presence of such a director for the purpose of determining a quorum.

3.9 The presiding officer of director's meetings shall be the chairman of the board if such an officer has been elected; and, if none, the President shall preside. In the absence of the presiding officer, the directors present shall designate one of their number to preside.

3.10- The order of business at directors' meetings shall be:

- 3.10- 1. Calling of roll.
- 2. Proof of due notice of meeting.
- 3. Reading and disposal of any unapproved minutes.
- 4. Reports of officers and committees.
- 5. Election of officers.
- 6. Unfinished business.
- 7. New business.
- 8. Adjournment.

4. POWERS AND DUTIES OF THE BOARD OF DIRECTORS.

4.1 All of the powers and duties of the Association existing under any Declaration of Covenants and Restrictions, Articles of Incorporation and these By-Laws shall be exercised exclusively by the Board of Directors, its agents, contractors or employees, subject only to approval by members of the Association when such is specifically required. Such powers and duties of the directors shall include, but shall not be limited to the following, subject, however, to the provisions of the Declaration of Covenants and Restrictions for Improvements and Maintenance, the Articles of Incorporation and these By-Laws.

4-1-1. To purchase insurance for the protection of the Association and its members.

4-1-2. To acquire and enter into agreement whereby it acquires leaseholds, memberships and any other possessory or use interests in lands, or facilities whether or not contiguous

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to the lands described in Exhibit 2, attached to the Articles of Incorporation of Barwood Condominium Improvement Association, Inc., intended to provide for the enjoyment, recreation or other use and benefit of the unit owners, and to declare expenses in connection therewith to be subject to assessment to the members.

4-1-3. To pay all costs of power, gas, water, sewer and other utility services rendered to the unit owners and not billed to the owners of the separate condominium parcels.

4-1-4. To enforce by legal means, the provisions of the Articles of Incorporation and By-Laws of the Association, Declaration of Covenants and Restrictions for Improvement and Maintenance and the Regulations hereinafter promulgated governing use of the Association's properties.

4-1-5. To appoint and remove at the pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation, and require of them such security or fidelity bond as it may deem expedient. Nothing contained in these By-Laws shall be construed to prohibit the employment of any member, officer or Director of the Association in any capacity whatsoever.

4-1-6. To establish, levy and assess, and collect the assessments necessary to operate the Association and carry on its activities, and to create such reserves for extraordinary expenditures as may be deemed appropriate by the Board of Directors.

4.2 The undertakings, leases and contracts authorized by the initial board shall be binding upon the Association in the same manner and with the same effect as though such undertakings, leases and contracts had been authorized by the first Board of Directors, duly elected by the membership, after the members have relinquished control of the Association, notwithstanding the fact that members of the initial Board of Directors may be directors or officers of, or otherwise associated with the BARWOOD DEVELOPMENT CORPORATION, or other entities doing business with the Association.

5. EXECUTIVE OFFICERS.

5.1 The executive officers of the corporation shall be a President, who shall be a director; a Vice President, who shall be a director; a Treasurer; a Secretary; and, an Assistant Secretary, all of whom shall be elected annually by the Board of Directors and who may be peremptorily removed by vote of the directors at any meeting by concurrence of a majority of all of the directors. Any person may hold two or more offices except that the President shall not also be the Secretary or an Assistant Secretary. The Board of Directors shall from time to time elect such other officers and designate their powers and duties as the board shall find to be required to manage the affairs of the Association.

5.2 The President shall be the chief executive officer of the Association. He shall have all of the powers and duties

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which are usually vested in the office of president of an association, including but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion deem appropriate, to assist in the conduct of the affairs of the Association.

5.3 The Vice President shall in the absence or disability of the President, exercise the powers and perform the duties of the President. He shall also generally assist the President and exercise such other powers and perform such other duties as shall be prescribed by the directors.

5.4 The Secretary shall keep the minutes of all proceedings of the directors and the members. He shall attend to the giving and serving of all notices to the members and directors and other notices required by law. He shall have custody of the seal of the Association and affix the same to instruments requiring a seal when duly signed. He shall keep the records of the Association, except those of the Treasurer, and shall perform all other duties incident to the office of Secretary of an association and as may be required by the directors of the President. The Assistant Secretary shall perform the duties of the Secretary when the Secretary is absent.

5.5 The Treasurer shall have custody of all property of the Association, including funds, securities and evidences of indebtedness. He shall keep books of account for the Association in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the Board of Directors for examination at reasonable times. He shall submit a Treasurer's report to the Board of Directors at reasonable intervals and shall perform all other duties incident to the office of treasurer.

5.6 The compensation of all officers and employees of the Association shall be fixed by the directors.

6. FISCAL MANAGEMENT. The provisions for fiscal management of the Association set forth in the Articles of Incorporation shall be supplemented by the following provisions:

6.1 Accounts. The receipts and expenditures of the Association shall be credited and charged to accounts which shall include but not be limited to the following classifications as shall be appropriate, all of which expenditures shall be common expenses:

6-1-1. Current expenses, which shall include all receipts and expenditures to be made within the year for which the budget is made, including a reasonable allowance for contingencies and working funds, except expenditures chargeable to reserves or to betterments. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year.

6-1-2. Reserve for deferred maintenance, which shall include funds for maintenance items which occur less frequently than annually.

6-1-3. Reserve for replacement, which shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

6-1-4. Betterments, which shall include the funds which may be used for capital expenditures for additional improvements or additional personal property.

6-1-5. The Board of Directors shall have the authority, during a budget year, to transfer funds which, in its discretion, it deems unnecessary to hold for the purposes of a particular account, to and for the use of another purpose in another account.

6.2 - Budget. The Board of Directors shall adopt a budget for each calendar year which shall include the estimated fund required to defray the common expense and to provide and maintain funds for account and reserves including but not limited to the following, according to good accounting practices:

6-2-1. Current expense. Current expense shall include all funds and expenditures to be made within the year for which the funds are budgeted and may include a reasonable allowance for contingencies and working funds. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year, or to fund reserves.

6-2-2. Reserve for Deferred Maintenance. Reserve for deferred maintenance shall include funds for maintenance items which occur less frequently than annually.

6-2-3. Reserve for Replacement. Reserve for replacement shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

6-2-4. Betterments, which shall include the funds to be used for capital expenditures for additional improvements or additional personal property which will be part of the common elements, the amount for which shall not exceed Five Thousand (\$5,000.00) Dollars; provided, however, that in the expenditure of this fund no sum in excess of Five Thousand (\$5,000.00) Dollars shall be expended for a single item or purpose unless such betterment has been approved by the members of the Association.

6-2-5. Copies of the budget and proposed assessments shall be available to each member on or before December 15th, preceding the year for which the budget is made and shall be filed in the office of the Association.

6.3 Assessments for Common Expenses. Assessments against the condominium parcel owners for their share of the common expenses shall be made for the calendar year annually in advance on or before December 20th, preceding the year for which the assessments are made. Such assessments shall be due and paid in equal monthly installments beginning on the first day of January of the year for which the assessment is made and the first day of each month thereafter. If an annual budget is not made as required, the monthly assessment shall be presumed to have been made in the amount of the last prior assessment and monthly installments thereon shall be due upon each installment payment date until changed by an amended assessment. In the event the annual assessment proves to be insufficient, the budget and assessments therefore may be amended at any time by the Board of Directors.

6.4 The depository of the Association shall be such bank or banks as shall be designated from time to time by the directors and in which the monies of the Association shall be deposited. Withdrawal of monies from such accounts shall be only by checks signed by such persons as are authorized by the directors.

6.5 An audit of the accounts of the Association shall be made annually by a certified public accountant, and a copy of the audit report shall be furnished to each member not later than April 1st of the year following the year in which the audit was made.

6.6 Fidelity bonds shall be required by the Board of Directors from all persons handling or responsible for Association funds. The amount of such bonds and the sureties shall be determined by the directors. The premiums on such bonds shall be paid by the Association as a common expense.

6.7 The termination of membership in the Association shall not relieve or release any such former owner or a member from a liability or obligation incurred under or in any way connected with the Association during the period of membership, or impair any rights or remedies which the Association may have against such former member arising out of or in any way connected with such membership and the covenants and obligations incident thereto.

7. RULES AND REGULATIONS.

7.1 The Board of Directors may, from time to time, adopt or amend previously adopted administrative rules and regulations governing the details of the operation, use, maintenance, management and control of any facilities or services made available to the condominium parcel owners. The Board of Directors shall, from time to time, post in a conspicuous place on the condominium properties, a copy of the rules and regulations adopted from time to time by the Board of Directors.

B3283 P1190

8. REGISTERS.

8.1 The Secretary of the Association shall maintain a register in the corporation office showing the names and addresses of members. It shall be the obligation of the individual members to advise the Secretary of the Association of any change of address and ownership as otherwise provided. The Association, for purposes of notification, shall have the right to rely upon the last given address of each of the members.

9. AMENDMENTS.

9.1 Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

9.2 A resolution adopting a proposed amendment may be proposed by with the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either:

9.2.1. Not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association; or

9.2.2. By not less than eighty (80%) percent of the votes of the entire membership of the Association.

9.3 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted as an amendment of the By-Laws, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall effective when such certificate and a copy of the amendment are recorded in the Public Records of Palm Beach County, Florida.

10. PARLIAMENTARY RULES. Roberts' Rules of Order (latest edition) shall govern the conduct of the Association meeting when not in conflict with the Declaration of Covenants and Restrictions for Improvement and Maintenance, the Declaration of Condominium, Articles of Incorporation or these By-Laws.

11. MISCELLANEOUS.

11.1 Whenever the masculine singular form of the person is used in these By-Laws, it shall be construed to mean the masculine, feminine or neuter, singular or plural, wherever the context so requires.

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11.2 If any irreconcilable conflicts should exist, or hereafter arise, with respect to the interpretation of these By-Laws and the Articles of Incorporation or the Declaration of Covenants and Restrictions for Improvement and Maintenance, the provisions of the Declaration of Covenants and Restrictions for Improvement and Maintenance shall prevail.

11.3 Corporation and Association are used synonymously.

The foregoing was adopted as the By-Laws of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., a corporation not for profit under the laws of the State of Florida, at the first meeting of the Board of Directors, on the 27th day of March, 1976.

Barbara M. Spelling
Secretary

(Corporate Seal)



Approved:

President

B3283 P1192

RECORD VERIFIED
PALM BEACH COUNTY, FLA
JOHN B. DUNKLE
CLERK CIRCUIT COURT

CERTIFICATE OF AMENDMENT TO THE
DECLARATION OF CONDOMINIUM OF
BARWOOD CONDOMINIUM II,
A CONDOMINIUM

This instrument was prepared by
Michael Corbo Atty
NAME
440 S. Andrews Ave
ADDRESS
Ft Lauderdale Fla
CITY AND STATE 33301

The undersigned duly elected President and Secretary of Barwood Condominium II, a Condominium, do hereby certify that pursuant to paragraph 19 of the Declaration of Condominium, for Barwood Condominium II, a Condominium and recorded at O.R. Book 2717, Page 1533 of the Public Records of Palm Beach County, the following resolution amending said Declaration of Condominium was approved by not less than seventy-five (75%) percent of the votes of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association or, in the alternative, by not less than eighty (80%) percent of the votes of the entire membership of the Association:

RESOLVED that the Declaration of Condominium be amended as follows:

1. Paragraph 11 be and hereby is amended to include 11.10

11.10 SALES SUBJECT TO ASSIGNMENT OF INTEREST:
NO UNIT OWNER may dispose of a unit or any interest therein by sale without executing an Assignment of Interest which shall be in the form attached hereto as Exhibit "K" unless otherwise amended in the manner provided herein.

EXECUTED this 18 day of June, 1980.

BARWOOD CONDOMINIUM II
ASSOCIATION, INC.

Dr. Wislocky
Mary Ellen Bagg
Dr. Wislocky
Mary Ellen Bagg

By: John J. Hope
President

Attest: Mary A. Hope
Secretary

STATE OF FLORIDA }
COUNTY OF PALM BEACH } SS

BEFORE ME the undersigned authority personally appeared John J. Hope***** as President of Barwood Condominium II Association, Inc. and he acknowledged before me that he executed the same.

WITNESS my hand and official seal this 18 day of June, 1980.

James F. Battaglia
Notary Public

My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA
MY COMMISSION EXPIRES JUNE 6 1981
BONDED THRU GENERAL INS. UNDERWRITERS



John Hope
23279 Barwood Lane, P.O.
Box 9, Ft. Lauderdale, FL 33303

80 105938

REC JUN 18 PM 1:58

13.60

83311 P0014

STATE OF FLORIDA)
COUNTY OF PALM BEACH) ss

BEFORE ME the undersigned authority personally appeared
Mary D. Hope****, as Secretary of Barwood Condominium
II Association, Inc. and he acknowledged before me that he
executed the same.

WITNESS my hand and official seal this 18 day of
June, 1980.

Jane E. Battilla
Notary Public

My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES JUNE 6 1984
BONDED THRU GENERAL INS.



B3311-P0015

ASSIGNMENT OF INTEREST

In consideration of Ten Dollars (\$10.00) and other good and valuable consideration, receipt of which is hereby acknowledged, _____

the present owner of Unit No. _____,

herein referred to as "Assignor", sets over, transfers and conveys to _____ and

_____, herein referred to as "Assignee(s)", all of his/her/their right, title and interest in and to all claims and causes of action arising out of the design, construction, and maintenance of said Unit and the common elements of the condominium, including but not limited to the litigation which is now pending in the Circuit Court of the 15th Judicial Circuit, in and for Palm Beach County, Florida, specifically described as BARWOOD CONDOMINIUM II ASSOCIATION, INC., a not-for-profit Florida corporation, Plaintiff, vs. BARWOOD DEVELOPMENT CORPORATION, a Florida corporation, Defendant, in Case No. 79-4172.

Assignee(s) shall be substituted in the full place and stead of Assignor as a member of the class represented by FARWOOD CONDOMINIUM II ASSOCIATION, INC., a not-for-profit Florida corporation, in that litigation.

Assignee(s) shall assume any and all of Assignor's liability that now exists or may arise out of or because of any such claim, litigation, or this Assignment.

This Assignment is without recourse, and Assignor does not guarantee payment of any claim hereby assigned. Assignor agrees, however, that in the event any payment under a claim is made to Assignor, he will promptly transmit such payment to Assignee(s).

IN WITNESS WHEREOF, the parties have executed this Assignment of Interest at _____

this _____ day of _____, 1980.

Witnessed in the presence of:

As to Assignor

ASSIGNOR

As to Assignee(s)

ASSIGNEE(S)

B3311 P0017

RECORD VERIFIED
PALM BEACH COUNTY, FLA
JOHN B. DUNKLE
CLERK CIRCUIT COURT

✓
This instrument was prepared by:
LEE H. BURG, Esquire,
BECKER & POLIAROFF, P.A.
3111 Stirling Road
Fort Lauderdale, FL 33312
Po Box 9057

OCT-23-1996 8:53am 96-371224
ORS 9475 Pg 690
DIRECTOR OF REVENUE

**CERTIFICATE OF AMENDMENT
TO THE DECLARATION OF CONDOMINIUM OF
BARWOOD CONDOMINIUM II, a Condominium**

WE HEREBY CERTIFY THAT the attached amendments to the Declaration of Condominium of Barwood Condominium II, as recorded in Official Records Book 2717 at Page 1533 of the Public Records of Palm Beach County, Florida, were duly adopted in the manner provided in Article 19 of the Declaration of Condominium, at a meeting held September 17, 1996.

IN WITNESS WHEREOF, we have affixed our hands this 8th day of OCTOBER, 1996, at BOCA RATON, Palm Beach County, Florida.

WITNESSES

Sign William H. Esmann
Print WILLIAM H. ESMANN
Sign Florence I. Vomhof
Print Florence I. Vomhof

BARWOOD CONDOMINIUM II
ASSOCIATION, INC.

By: Louis Lichtman
Louis Lichtman, President
23268 Barwood Lane No.
Building 4, Apartment #304
Boca Raton, FL 33428

STATE OF FLORIDA
COUNTY OF PALM BEACH

The foregoing instrument was acknowledged before me this 8 day of OCT, 1996, by Louis Lichtman, as President, of Barwood Condominium II Association, Inc., a Florida not-for-profit corporation.

Personally Known X OR
Produced Identification _____
Type of Identification _____

NOTARY PUBLIC - STATE OF FLORIDA

sign Mary T. Gately
print MARY T. GATELY
My Commission expires: _____



Official Seal
MARY T. GATELY
Notary Public, State of Florida
My Comm. Expires March 15, 1999
No. 00440733
Personally Known X
Produced Identification ☐
Type of I.D. Produced _____

AMENDMENTS TO THE DECLARATION
OF CONDOMINIUM OF
BARWOOD CONDOMINIUM II,
A CONDOMINIUM

NOTE: NEW WORDS INSERTED IN THE TEXT ARE UNDERLINED AND WORDS
DELETED ARE LINED THROUGH WITH HYPHENS.

1. Amendment to Article 11, Section 11.1, subsection 2, of
the Declaration of Condominium, to read as follows:

2. Lease. No unit owner may dispose of a unit or any
interest therein by lease without approval of the Association
except to another unit owner. Leasing of a unit shall be
limited to one (1) rental per year and for a period of four
(4) months only.

2. Amendment to Article 15, Section 15.2, subsection 1, of
the Declaration of Condominium, to read as follows:

15.2 Coverage.

1. Casualty. All buildings and improvements upon the
land including units and all personal property of the
Association included in the condominium property are to be in
an amount ~~equal to the maximum insurable replacement value, to~~
be determined adequate by the Board of Directors in conformity
with Florida Statutes, excluding foundations and excavation
costs as determined annually by the Board of Directors of the
Association, and all such insurance must be obtained, if
possible, from the same company. Such coverage affords
protection against:

(a) Loss or damage by fire and other hazards
covered by a standard extended coverage endorsement.

(b) Such other risks as from time to time shall be
customarily covered with respect to buildings similar in
construction, location and use, including but not limited to,
vandalism and malicious mischief.

**AMENDMENT TO THE
DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM**

NOTE: NEW WORDS INSERTED IN THE TEXT ARE UNDERLINED AND WORDS DELETED ARE LINED THROUGH WITH HYPHENS.

1. *Amendment to Article 10, Section 10.1.1, of the Declaration of Condominium, to read as follows:*

10. Use Restrictions. The use of the property of the condominium shall be in accordance with the following provisions:

10.1 Units.

1. Each of the units shall be occupied only by an owner, his family, his servants and guests, as a residence and for no other purpose. ~~Children under fifteen (15) years of age are not permitted as residents.~~ Inasmuch as Barwood Condominium II is designed and intended as a retirement community for older persons, to provide housing for residents who are fifty-five (55) years of age or older, no unit shall, at any time, be permanently occupied by children who are under eighteen (18) years of age; except that children below the age of eighteen (18) may be permitted to visit and temporarily reside for periods as provided in the Association Rules. No sole occupancy of any unit shall be permitted by an individual between the ages of eighteen (18) and fifty-five (55). Notwithstanding same, the Board in its sole discretion shall have the right to establish hardship exceptions to permit individuals between the ages of eighteen (18) and fifty-five (55) to permanently reside in the community, providing that said exceptions shall not be permitted in situations where the granting of a hardship exception would result in less than 80% of the units in the Condominium community having less than one resident fifty-five (55) years of age or older, it being the intent that at least 80% of the units shall at all times have at least one resident fifty-five (55) years of age or older. The Board of Directors shall establish policies and procedures for the purpose of assuring that the foregoing required percentages of adult occupancy are maintained at all times. The Board, or its designee, shall have the sole and absolute authority to deny occupancy of a unit by any person(s) who would thereby create a violation of the aforesated percentages of adult occupancy. Permanent occupancy or residency shall be defined in the Rules and regulations of the Association as may be promulgated by the Board.

This instrument was prepared by:
✓ Lee H. Burg, Esquire,
BECKER & POLIAKOFF, P.A.
3111 Stirling Road
Fort Lauderdale, FL 33312

12/11/2001 15:20:27 2001051
OR BK 13179 PG 0021
Palm Beach County, Florida

**CERTIFICATE OF AMENDMENT
TO THE BY-LAWS OF
BARWOOD CONDOMINIUM II ASSOCIATION, INC.**

WE HEREBY CERTIFY THAT the attached Amendment to the By-Laws of Barwood Condominium II Association, Inc., having been recorded in Official Records Book 2717, Page 1594, of the Public Records of Palm Beach County, Florida, were duly adopted in the manner provided in the governing documents of the Association, at a meeting held November 1, 2001.

IN WITNESS WHEREOF, we have affixed our hands this 1st day of DECEMBER 2001, at Boca Raton, Palm Beach County, Florida.

WITNESSES

Sign Florence I. Vomhof
Print Florence I. Vomhof
Sign Beverly Sillman
Print BEVERLY SILLMAN

BARWOOD CONDOMINIUM II
ASSOCIATION, INC.
a Florida not-for profit corporation

By: Margaret Ballantyne
Margaret Ballantyne, President
23279 Barwood Lane, #109
Boca Raton, FL 33428

STATE OF FLORIDA
COUNTY OF PALM BEACH

The foregoing instrument was acknowledged before me this 1st day of DECEMBER, 2001, by Margaret Ballantyne, as President of Barwood Condominium II Association, Inc., a Florida not-for-profit corporation.

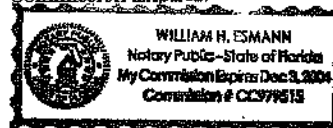
Personally Known ☒ OR
Produced Identification _____

Type of Identification

NOTARY PUBLIC - STATE OF FLORIDA

Sign William H. Esmann
Print WILLIAM H. ESMANN

My Commission Expires:



681853_1.DOC

**AMENDMENT TO THE
BY-LAWS
OF
BARWOOD CONDOMINIUM II ASSOCIATION, INC.**

NOTE: NEW WORDS INSERTED IN THE TEXT ARE UNDERLINED AND WORDS DELETED ARE LINED THROUGH WITH HYPHENS.

1. Amendment to Article 6, Section 6.8 of the By-Laws, to read as follows:

6. FISCAL MANAGEMENT.

- 6.8. ~~An audit~~ A report of the accounts of the Association shall be made annually by ~~a certified public~~ an accountant and a copy of the ~~audit~~ report shall be furnished to each ~~member~~ unit owner not later than April 1st of the year following the year which the ~~audit report~~ is made.

This instrument was prepared by:
Lee H. Burg, Esquire,
BECKER & POLIAKOFF, P.A.
3111 Stirling Road
Fort Lauderdale, FL 33312

CFN 20120100021
OR BK 25070 PG 1333
RECORDED 03/14/2012 10:59:22
Palm Beach County, Florida
Sharon R. Bock, CLERK & COMPTROLLER
Pgs 1333 - 1334; (2pgs)

**CERTIFICATE OF AMENDMENT
TO THE DECLARATION OF CONDOMINIUM OF
BARWOOD CONDOMINIUM II ASSOCIATION, INC.**

WE HEREBY CERTIFY THAT the attached Amendment to the Declaration of Condominium of Barwood Condominium II Association, Inc., having been recorded in Official Records Book 2717, Page 1594, of the Public Records of Palm Beach County, Florida, were duly adopted in the manner provided in the governing documents of the Association, at a meeting held February 7, 2012.

IN WITNESS WHEREOF, we have affixed our hands this 5 day of MARCH, 2012, at Boca Raton, Palm Beach County, Florida.

WITNESSES

Sign ETAINC TROW
Print ETAINC TROW
Sign FRANK S. JOHNSON
Print FRANK S. JOHNSON

BARWOOD CONDOMINIUM II
ASSOCIATION, INC.
a Florida not-for profit corporation

By: Lawrence Seale
Lawrence Seale, President
23279 Barwood Lane, #106
Boca Raton, FL 33428

STATE OF FLORIDA
COUNTY OF PALM BEACH

The foregoing instrument was acknowledged before me this 5th day of MARCH, 2012, by Lawrence Seale, as President of Barwood Condominium II Association, Inc., a Florida not-for-profit corporation.

Personally Known OR
Produced Identification

Type of Identification

ACTIVE: 3725295_1

NOTARY PUBLIC - STATE OF FLORIDA

Sign Susan Maass
Print SUSAN MAASS
My Commission Expires:



SUSAN MAASS
MY COMMISSION # DD 005821
EXPIRES: July 9, 2013
Bonded thru Budget Notary Services

LAW OFFICES
BECKER & POLIAKOFF, P.A. • 3111 STIRLING ROAD • FT. LAUDERDALE, FLORIDA 33312
TELEPHONE (954) 987-7550

CERTIFICATE OF AMENDMENT
TO THE DECLARATION OF CONDOMINIUM
OF
BARWOOD CONDOMINIUM II ASSOCIATION, INC.

NOTE: NEW WORDS INSERTED IN THE TEXT ARE UNDERLINED AND WORDS DELETED ARE LINED THROUGH WITH HYPHENS.

1. **Amendment to Article 1 of the Declaration of Condominium entitled Purpose to read as follows:**

Purpose. The purpose of this Declaration is to submit the land described in this instrument and improvements on such lands, and improvements to be constructed upon such lands to the condominium form of ownership and use in the manner provided by Chapter 718, Florida Statutes, as amended from time to time hereinafter referred to as "condominium Act."

ACTIVE: 3725407_1

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

POOL AREA RULES

- 1. NO LIFE GUARD ON PREMISES – SWIM AT YOUR OWN RISK**
- 2. TELEPHONE AND FIRST AID KIT LOCATED IN KITCHEN OF RECREATION BUILDING**
- 3. SWIMMING HOURS: Dawn to Dusk**
- 4. NO SPORTING EQUIPMENT PERMITTED**
- 5. NO SMOKING IN POOL OR POOL AREA**
- 6. ALL PERSONS SUSPECTED OF BEING UNDER THE INFLUENCE OF DRUGS OR ALCOLHOL WILL BE PROHIBITED FROM ENTERING THE POOL**
- 7. NO FOOD ALLOWED**
- 8. NO GLASS CONTAINERS ALLOWED**
- 9. SHOWER & REMOVE SUNTAN OIL BEFORE ENTERING POOL**
- 10. PROPER BATHING SUITS MUST BE WORN**
- 11. NO SOAP OR SHAMPOO PERMITTED IN SHOWER**
- 12. FURNITURE TO BE COVERED WHEN USING SUNTAN OIL**
- 13. RESERVATION OF FURNITURE NOT ALLOWED**
- 14. NO SITTING ON STEPS**
- 15. CHILDRED UNDER 15 MUST BE ACCOMPANIED BY AN ADULT**
- 16. CHILDREN MUST BE TOILET TRAINED**
- 17. ONLY 14 PERSONS PERMITTED IN POOL**
- 18. NO UNRULY BEHAVIOR ALLOWED IN POOL AREA**
- 19. NO DIVING OR JUMPING INTO POOL**
- 20. ALL OWNERS AND GUESTS MUST BE RESPECTFUL OF OTHERS**

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.
RULES FOR RENTING THE CLUBHOUSE

(Revised March 2013)

1. The recreation facilities are for the exclusive use of unit owners and their guests.
2. The unit owner must be present in the clubhouse during the function.
3. Clubhouse rental does not include the use of the pool. (pool and pool area may not be used)
4. Rental must not conflict with events scheduled by the B.C.I.A.
5. The main hall is limited to 104 people and the card room can hold 30.
6. Party host is responsible for all supplies needed. (nothing is provided)
7. Nothing can be applied to walls that might damage the paint.
8. Complete clean-up must be completed by noon the day after the party.
9. A fee of \$300 will be charged at the time of rental with \$200 being returned to you if there is no damage and the facility is left clean.
10. Unit owner will be held liable and must pay for any damage to the facility created during the rental period.
11. All garbage and trash must be bagged, tied, and disposed of as directed.
12. A professional security guard must be hired (at the unit owners expense) for any event with more than 20 minors in attendance. The security guard should be an off duty officer approved by the B.C.I.A.
13. Your reservation will be confirmed after your check and application are received.
14. Rental agreement must state the number of expected guests and minors.

AS A CONDITION FOR USE OF THE CLUBHOUSE THE UNIT OWNER AGREES TO THE TERMS OF THESE RULES AND THE ACCOMPANYING RESERVATION AGREEMENT. THE ASSOCIATION RESERVES THE RIGHT TO ENTER THE CLUB HOUSE AND TO TERMINATE THE FUNCTION SHOULD ANY PERSON ENGAGE IN CONDUCT THAT ENDANGERS THE HEALTH OR SAFETY OF OTHER PERSONS ATTENDING THE FUNCTION OR CONSTITUTES A THREAT TO OUR PROPERTY.

BARWOOD CONDO II ASSOCIATION, INC.
RULES AND REGULATIONS GOVERNING
INSPECTION AND COPYING OF ASSOCIATION RECORDS

RECORDS DEFINED

The records available for inspection and copying are defined as those records designated by the Florida Condominium Act, as same may be amended from time to time, as the Official Records of the Association, to the extent that the Association is required to maintain such records.

RECORDS AVAILABLE

No records other than those defined above shall be available for inspection or copying.

PERSONS ENTITLED TO INSPECT OR COPY

No unit owner, and no unit owner's authorized representative, shall have any right to inspect or copy the records of the Association, except as permitted by law. No person shall be permitted to make a request to inspect or copy the records of the Association, or to actually inspect or copy the records of the Association, as a unit owner's authorized representative, unless such person delivers to the Association a written document signed and dated by the unit owner in which such person is expressly appointed as the unit owner's authorized representative for this purpose. No other person shall be permitted to inspect or copy the Association records.

Requests to inspect the records by more than one unit owner or unit owner's representative at the same time will not be honored. Inspection will be limited to one unit owner or unit owner's representative at a time to ensure that the inspection process can be properly monitored.

INSPECTION AND COPYING

1. A unit owner, or a unit owner's authorized representative, desiring to inspect or copy Association records shall submit a written request to the Secretary (or Manager). The written request must be mailed, hand delivered or faxed to the Association's official mailing address. No other method of delivering a written request shall be valid or accepted. The written request must specify the particular records the unit owner desires to inspect or copy, including pertinent dates, names or time periods. The specification of the particular records must be sufficiently

detailed to permit the Association to retrieve the exact records requested. General descriptions of records, such as, but not limited to, "All items pertaining to _____", or "All correspondence from _____", or "All contracts for _____", are insufficiently specific, shall not be permitted and such general requests shall not be honored.

2. Inspection or copying of records shall be restricted solely to those records specifically designated in the written request for inspection or copying. No inspection or copying of any other records shall be permitted. If the Association is unclear as to which documents are being requested by the unit owner, the unit owner will be contacted and additional information must be submitted to clarify the inspection request. The statutory time frame to comply with the document inspection request will not start to run until the inspection request has been clarified.

3. A unit owner, or a unit owner's authorized representative, shall not submit more than one (1) written request for inspection or copying of records per calendar month. If more than one (1) written request for inspection or copying of records is made within a calendar month, then all such written requests subsequent to the first written request shall not be honored and no inspection or copying of records requested in such subsequent written requests shall be permitted. A written request for inspection or copying of records shall not contain a request to inspect or copy more than ten (10) records. If more than ten (10) records are being requested in a written request to inspect or copy records, then all records subsequent to the first record listed in the written request shall not be honored and no inspection or copying of those subsequent records shall be permitted. No written request shall be submitted for the same records requested in a prior written request within the previous twelve (12) calendar months. If a written request is made for the same records requested in a prior written request within the previous twelve (12) calendar months, such written request shall not be honored and no inspection or copying of the same records shall be permitted. The time to inspect any one (1) record shall be limited to a maximum of four (4) hours in any one sitting. In no event shall an inspection exceed eight (8) hours in any one month period.

4. Inspections of records shall be conducted at the office where the Association's records are maintained or at such other location as may be designated by the Association. No unit owner or authorized representative of a unit owner shall remove original records from the location where the records are inspected or make any marks or alterations on original records.

5. Records shall be made available for inspection on or before the tenth (10th) working day subsequent to actual receipt by the Association of the written request for inspection. This time frame may be extended or delayed upon written

agreement between the Association and the unit owner making the request. The Association shall notify the unit owner or the unit owner's authorized representative in writing, that the records are available for inspection, and the time, date and place when the records may be inspected. Records may be inspected only at the time, date and place designated by the Association and only during normal Association business hours, or during the normal business hours of the location where the records are to be inspected, if other than the Association office. For the purposes herein, "working day" shall mean Monday through Friday, exclusive of federal, state and local holidays on which the office of the Clerk of Court of this County is closed for business. For purposes herein, "normal business hours" shall be the hours the Association office is customarily open, or the hours the location where the records are to be inspected is customarily open, namely ____ A.M. to ____ P.M. on a week day. The Association shall not research or otherwise review its records to locate any of the specific records requested to be inspected or copied by the unit owner or the unit owner's authorized representative. The Association shall merely indicate which drawer, file cabinet, box or other storage facility in which the official records may be kept contain the type of record requested to be inspected or copied by the unit owner or the unit owner's authorized representative. The Association is under no obligation to pull or compile records requested by the unit owner or unit owner's representative. The unit owner, or the unit owner's authorized representative, shall be required to research and/or review the records contained in such storage facility in order to locate the specific records requested to be inspected or copied.

6. A unit owner or the unit owner's representative can use a portable device, including a smartphone, tablet or portable scanner, or any other technology capable of scanning or taking photographs, to make an electronic copy of the official records in lieu of the association's providing the member or his or her authorized representative with a copy of such records. If, during or immediately upon completion of inspection, a unit owner or a unit owner's authorized representative desires to have the Association make a copy of a record, the unit owner or the unit owner's authorized representative shall designate, in a separate writing, on a form provided by the Association, the specific record, or portion thereof, including page numbers, for which a copy is desired, or in the alternative, shall designate such record, or portion thereof, by use of a "clip" or "tab" upon the page(s) of the record. Not more than one (1) copy of each record requested shall be permitted. If the location where the records are being inspected or stored has a copy machine capable of making copies of the records designated, then copies of the records shall be available within two (2) working days subsequent to the designation of such records for copying. If there is no copy machine at the location where the records are being inspected or stored capable of making copies of the records designated, then copies of the records shall be available within a reasonable time after a copying service can pick-up, copy and return the records to the location where the records are being inspected or stored. In the event the

copies of the records are so voluminous, or a copy machine or copy service is not available or too busy, or the records are in such condition or form that copies cannot be made available within the above-stated time periods, then copies will be made available as soon as practical. The Association shall not copy records, or make copies of records available, unless the unit owner or the unit owner's authorized representative actually inspects the records and designates which records the unit owner wants copied. The Association is under no duty to mail or otherwise deliver the copies of the records to the unit owner or the unit owner's authorized representative. The unit owner, or the unit owner's authorized representative, must go to the location where the records were inspected and pick up the copies. Notwithstanding the above, if requested by the unit owner or the unit owner's authorized representative, the Association may, if it deems the request reasonable in its sole discretion, make copies of records without the unit owner or unit owner's authorized representative actually inspecting the records and may arrange for the copies to be mailed or otherwise delivered by any method agreed to between the Association and the unit owner or the unit owner's authorized representative. If no inspection of the records is made and the Association agrees to make copies, then copies of records will be available within a reasonable time, but not less than two (2) working days subsequent to the last date the records would have been available for inspection.

7. A unit owner or a unit owner's authorized representative desiring a copy of a record shall pay the reasonable expense of making the copy, which expense shall not be less than the actual cost of making the copy, nor more than the highest amount permissible by law. A unit owner or unit owner's authorized representative, who has made an agreement with the Association for the Association to make copies of records without the unit owner or unit owner's authorized representative actually inspecting the records, shall pay a reasonable expense for obtaining, researching and reviewing the Association's records to locate and copy the records requested, including labor, which expense shall not be less than the actual expense incurred. A unit owner or unit owner's authorized representative, who has made an agreement with the Association to mail or otherwise deliver copies of records, shall pay a reasonable expense for mailing or otherwise delivering the copies, which expense shall not be less than the actual cost of mailing or otherwise delivering the copies. Payment in advance for the cost of obtaining, researching and reviewing records, or making a copy or mailing or delivering a copy shall be required. In the event payment is made in form other than cash, cashier's check, money order or certified check, payment shall not be deemed received unless and until payment has cleared. No record shall be obtained, researched, reviewed or located and no copy of a record shall be made, mailed or delivered, unless and until payment therefore is received. Records not normally kept in written form shall be produced for inspection in the form in which they are normally kept, unless the law requires the record to be converted to written form. The cost of converting

such records to written form shall be in addition to the cost of copying such records, and the unit owner or the unit owner's authorized representative shall pay a reasonable expense of converting such records to written form, which expense shall not be less than the actual cost of making the conversion nor more than the highest amount permissible by law, unless the law requires the Association to pay the cost of converting the records to written form.

MANNER OF INSPECTION

1. No written request for inspection or copying shall be made solely to harass another unit owner or resident, the Association, or any Association officer, director, employee or agent.

2. For purposes hereof, a unit owner and the unit owner's authorized representative shall be considered one person.

3. All persons inspecting or requesting copies of records shall conduct themselves in a courteous manner, and shall not interfere with the normal operation of the Association's office and the duties of its personnel, or the operation of the office where the records are being inspected or copied and the duties of their personnel. The Association, or the office of the location where the records are being inspected, shall assign at least one staff person to assist in the inspection of the records, and all requests for assistance and copies during the inspection shall be directed to that person.

4. The Association shall maintain a log sheet which shall include: (i) the date a written request for inspection or copying of records is received, (ii) from whom the written request was received, (iii) what records are requested to be inspected or copied, (iv) the date the person requesting inspection or copying was notified of the availability of the records for inspection or copying, (v) the date the person requesting inspection or copying actually inspected or received copies of the records, (vi) and a place for the person requesting inspection or copying to sign, acknowledging the records were inspected or copies were received. Every person permitted to inspect or copy records shall sign the log sheet prior to actual inspection and prior to taking actual delivery of the copies. No inspection of records shall be permitted and no copies of records shall be delivered unless and until the person requesting inspection or copies signs the log sheet.

5. A unit owner or representative may not bring a "witness" while inspecting the books and records of the Association.

ENFORCEMENT OF INSPECTION AND COPYING RULES

1. Any violation of these rules shall be cause for the Association to suspend the document inspection or copying until such time as the violator agrees in writing to comply herewith, in which event the inspection or copying shall resume on the next working day after receipt of the written agreement, at a time designated by the Association.

2. Requests for inspection and copying which do not comply with the foregoing rules will not be honored, but the Association shall, instead, mail or hand-deliver a written response to the person requesting inspection and/or copying within two (2) working days after receipt of a non-complying request and shall indicate how the request fails to comply with the Association's Inspection and Copying Rules. A unit owner or the unit owner's representative may submit one corrective request for inspection and copying within the same month if the initial request is rejected for being non-compliant.

3. The Board of Directors may take whatever appropriate legal action is available against any person who fails to comply with these rules.

4. Nothing in these rules shall be construed as a limitation or restriction upon any of the Association's rights or remedies, or act as an election of remedies. All rights and remedies available to the Association shall be cumulative.

BARWOOD CONDO II ASSOCIATION, INC.

RULES AND REGULATIONS GOVERNINGS BULLETIN BOARD POSTINGS

POSTINGS DEFINED

Postings on the bulletin board are limited to the following:

Items for sale or free, services, announcements of meetings or social gatherings, announcements of a unit owner's illness or passing and postings by the Board of Directors or the BCIA. Items posted that do not reasonably fit the categories listed above will be removed by a board member and the owner or owners who posted such items will be required to cease such postings.